



October 15, 2019

Federal Maritime Commission
Rachel Dickon
Commission Secretary
secretary@fmc.gov

Re: SUPPORT: Interpretive Rule on Detention and Demurrage under the Shipping Act

Honorable Commissioners:

On behalf of **T.G.S. Transportation, Inc.**, a member of the Harbor Trucking Association, we first wanted to thank the commission for taking time to address this important issue. It has been a growing concern of ours that we have been the victim of unreasonable business practices that have undermined the once well intended practice of using detention and demurrage to incentivize an expedient movement of cargo. Now, I find myself the subject of unreasonable charges and saddled with the expensive administrative burden of proving that I am not at fault for charges I never agreed to and am not responsible for. These unreasonable practices have caused great financial distress to my company, while serving as a profit center for the entities who charge detention and demurrage. The leadership of the Federal Maritime Commission (FMC) on this important issue has been greatly appreciated by the motor carrier community, and we strongly urge you to move forward with adopting the interpretive rule to help end the current abuses that result from antiquated rules regarding detention and demurrage.

1. The proposed rule provides important guidance to the maritime industry regarding how the FMC will evaluate the reasonableness of port demurrage and container charges.
 - There is a need for FMC guidance to address serious concerns over ocean carrier and marine terminal demurrage/detention charges as demonstrated in the Fact-Finding Investigation and the Petition filed by the Coalition for Fair Port Practices.
 - The proposal identifies key principles and examples of reasonable practices that will be considered by the FMC in the context of a 10(d) claim as to demurrage/detention, while providing the necessary flexibility to account for differing factual circumstances (e.g. rule provides a non-exhaustive list of principles but is non-binding).
 - The proposal will greatly benefit the US maritime industry by promoting efficient cargo handling and delivery, improving commercial fairness in the assessment of the charges, while also reducing confusion and disputes.
2. The Interpretive Rule seeks to align demurrage/detention rules and practices with their intended purpose of incentivizing efficient cargo handling and delivery.
 - The Incentive Principle is supported by the law and Shipping Act policies.
 - Support suspension of charges (or at least extension of free time) where efficiency incentives are not able to be achieved.

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- Appropriate for cargo interests to fulfill their responsibilities to receive and pick up cargo but no need for advance payment of all charges where credit has been agreed to between shipper and ocean carrier. Also, pre-payment should not apply to disputed charges.

3. Comments on Specific Aspects of the Interpretive Rule

- **Scope of the Rule:** Rule broadly applies to all charges applied to use of marine terminal space or shipping containers, except freight, and to containerized trade only.
- **Cargo Availability.** Under the current rules and the Shipping Act, cargo is deemed available when it is unloaded from the vessel. However, in this case the cargo is never truly available until later. With cargo being held for holds by customs, being inaccessible because the terminal has kept it in a “close area”, or, in the more modern terminal operations, the container not having an available appointment, cargo is rarely, if ever, available when the free-time clock starts. Knowing when cargo is actually available will help ensure that pickup is timely scheduled—reducing idle and wasted hours truckers spend waiting for containers to become available. Free time should be tied to actual cargo availability and not vessel arrival since you cannot incentivize efficient cargo pickup if the cargo may not yet be available (i.e. held in a closed yard or location at the terminal). Free time should be stopped if container is no longer available. Important to consider the workings of terminal appointment systems in evaluating reasonableness—should be some minimum period of appointment availability.
- FMC correctly determined that the manner in which notice of cargo availability is communicated is a critical aspect of reasonableness. Notice must be timely and readily accessible to the contracting party or its designee, must provide clear information as to when and where cargo may be retrieved, and “push notices” are favored.
- **Government Inspections.** Need input here as to which of the 3 offered approaches makes the most sense: (1) waiver or extension of free time; (2) cap on the amount of charges that may accrue; or (3) no escalation of demurrage/detention during inspections. Option 1 seems the most commercially-oriented but understand that parties may see benefits in the other proposals.
- **Dispute Resolution.** FMC has properly identified the types of policies, rules and practices that would greatly improve dispute resolution processes. Defined time frames should apply to both filing and responding to claims must operate to facilitate resolution of disputes and not unreasonably cut off claims.
- **Billing.** Agree with FMC that demurrage/detention invoices must include adequate information to allow a shipper/trucker to audit and contest the charges. Favor invoicing that is tied to contractual relationships rather than ownership or control of the assets, i.e. ocean carriers should continue to bill their customers directly, rather than terminals billing for demurrage, since parties should be able to negotiate demurrage terms in their service contracts.
- **Evidentiary guidance.** Support FMC proposal encouraging the identification of information that can facilitate dispute resolution, such as appointment logs and trouble tickets.
- **Terminology.** Support FMC proposal for the use of more consistent demurrage and detention terminology in carrier and terminal tariffs, including that the most common understanding of these terms is based on the source of the charge (land for demurrage) and (container for detention) as opposed to the location (inside or outside the terminal).

4. Example of per diem charges that took a long time to fix at a large expense of time and effort over months
 - ONE line on import Gap container from 12/18; fixed 9/19.
 - I have sent 3-4 other examples over the last year with FF28. If you need further examples, please do not hesitate to ask.
5. FMC should proceed to adopt its proposed interpretive rule promptly.

Should you have any questions, I can be reached at pschneider@tgstrans.com or 559-647-8808.

Respectfully,



Peter Schneider – Executive Vice President
T.G.S. Transportation, Inc.

Peter Schneider

From: Brian Mayfield <brian.mayfield@one-line.com>
Sent: Wednesday, September 25, 2019 9:39 AM
To: Evan Pritchard
Cc: Maria Bodnar; Pan Saurastri; David Johnson; Nelson Weisman; Jeff Cox; Tim Schneider; Diane Ruether; Janet Daniel; Peter Schneider
Subject: Re: ***URGENT*** ONE line per diem with GAP-TGS
Attachments: image007.png

Evan,

I just spoke with Peter @ TGS about this. We will be updating our system to reflect empty return of 12/6/18 at Fastlane. This should put this matter to an end. Thank you for your patience.

Best Regards,

Brian Mayfield
Sr. Account Executive
Ocean Network Express (North America) Inc.
San Francisco Bay Area
Tel: 415-215-6707
brian.mayfield@one-line.com
www.one-line.com

*** Rates are not effective until they are filed with the FMC ***



On Tue, Sep 24, 2019 at 9:04 AM Evan Pritchard <Evan_Pritchard@gap.com> wrote:

Maria – may you please lean in and assist on getting this resolved? A bit frustrating that we haven't been able to get this resolved in a month but appreciate any help getting this put to bed once and for all.

Thank you,

Evan Pritchard | Sr. Manager – International Transportation Operations

2 Folsom Street, San Francisco, CA 94105

office: 415-427-3095 | cell: 845-800-1143 | email: Evan_Pritchard@Gap.com

Gap Inc. Global Supply Chain & Product Operations



BANANA REPUBLIC

OLD NAVY

ATHLETA

INTERMIX

HILL CITY

JANIE AND JACK

From: Peter Schneider <pschneider@tgstrans.com>

Sent: Tuesday, September 24, 2019 9:00 AM

To: Evan Pritchard <Evan_Pritchard@gap.com>; Brian Mayfield <brian.mayfield@one-line.com>

Cc: Pan Saurastri <pan.saurastri@one-line.com>; David Johnson <David_Johnson@gap.com>; Nelson Weisman <nelson.weisman@one-line.com>; Jeff Cox <jcox@tgstrans.com>; Tim Schneider <tschneider@tgstrans.com>; Diane Ruether <druether@tgstrans.com>; Janet Daniel <jdaniel@tgstrans.com>

Subject: RE: ***URGENT*** ONE line per diem with GAP-TGS

All,

We received another demand notice today...can we please get this one put to rest?

Thank you,

Peter Schneider – Executive Vice President

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✉: pschneider@tgstrans.com | 🌐: www.tgstrans.com



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From: Evan Pritchard [mailto:Evan_Pritchard@gap.com]

Sent: Tuesday, September 10, 2019 4:18 PM

To: Peter Schneider <pschneider@tgstrans.com>; Brian Mayfield <brian.mayfield@one-line.com>

Cc: Pan Saurastri <pan.saurastri@one-line.com>; David Johnson <David_Johnson@gap.com>; Nelson Weisman <nelson.weisman@one-line.com>; Jeff Cox <jcox@tgstrans.com>; Tim Schneider <tschneider@tgstrans.com>; Diane Ruether <druether@tgstrans.com>; Janet Daniel <jdaniel@tgstrans.com>

Subject: RE: ***URGENT*** ONE line per diem with GAP-TGS

Brian – what's the issue getting this resolved? If ONE instructed the TGS team to terminate the box at FastLane, it seems like this should be pretty cut and dry. Please have your team dismiss the charges so we can move on.

From: Peter Schneider <pschneider@tgstrans.com>

Sent: Tuesday, September 10, 2019 4:15 PM

To: Brian Mayfield <brian.mayfield@one-line.com>

Cc: Evan Pritchard <Evan_Pritchard@gap.com>; Pan Saurastri <pan.saurastri@one-line.com>; David Johnson <David_Johnson@gap.com>; Nelson Weisman <nelson.weisman@one-line.com>; Jeff Cox <jcox@tgstrans.com>; Tim Schneider <tschneider@tgstrans.com>; Diane Ruether <druether@tgstrans.com>; Janet Daniel <jdaniel@tgstrans.com>

Subject: RE: ***URGENT*** ONE line per diem with GAP-TGS

Brian and all,

I wanted to check in on this. I have a hectic schedule the rest of the week and will be at IANA from Sat-Wed next week...so I may miss a lot of emails over the next week.

Thank you,

Peter Schneider – Executive Vice President

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From: Peter Schneider

Sent: Wednesday, September 4, 2019 9:25 AM

To: 'Brian Mayfield' <brian.mayfield@one-line.com>

Cc: Evan Pritchard <Evan_Pritchard@gap.com>; Pan Saurastri <pan.saurastri@one-line.com>; David Johnson <David_Johnson@gap.com>; Nelson Weisman <nelson.weisman@one-line.com>; Jeff Cox <jcox@tgstrans.com>; Tim Schneider <tschneider@tgstrans.com>; Diane Ruether <druether@tgstrans.com>; Janet Daniel <jdaniel@tgstrans.com>

Subject: RE: ***URGENT*** ONE line per diem with GAP-TGS

Yes, YTI rejected...turned us back. We have emails from ONE telling us to turn in containers to FastLane...see attached. Even though the subject is KKTU, this is the string.

Thank you,

Peter Schneider – Executive Vice President

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From: Brian Mayfield [<mailto:brian.mayfield@one-line.com>]
Sent: Wednesday, September 4, 2019 9:19 AM
To: Peter Schneider <pschneider@tgstrans.com>
Cc: Evan Pritchard <Evan_Pritchard@gap.com>; Pan Saurastri <pan.saurastri@one-line.com>; David Johnson <David_Johnson@gap.com>; Nelson Weisman <nelson.weisman@one-line.com>; Jeff Cox <jcox@tgstrans.com>; Tim Schneider <tschneider@tgstrans.com>; Diane Ruether <druether@tgstrans.com>; Janet Daniel <jdaniel@tgstrans.com>
Subject: Re: ***URGENT*** ONE line per diem with GAP-TGS

Peter,

Our EQC would like to know if YTI rejected the empty forcing you to dray to FastLane. Can you please let us know?

Empty from Gap Fresno to YTI	12/6/18 – 9:00
Empty from YTI to Fastlane	12/6/18 – 10:00

Best Regards,

Brian Mayfield

Sr. Account Executive

Ocean Network Express (North America) Inc.

San Francisco Bay Area

Tel: 415-215-6707

brian.mayfield@one-line.com

www.one-line.com

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On Wed, Sep 4, 2019 at 9:09 AM Peter Schneider <pschneider@tgstrans.com> wrote:

Brian and all,

We received this today...can you please have someone put UST172370 on hold or something? We don't want to get shut out or anything...

Any word by the way?

From: NA OFS Truck Det [<mailto:na.ofs.truck.det@one-line.com>]

Sent: Wednesday, September 4, 2019 7:55 AM

To: Janet Daniel <jdaniel@tgstrans.com>; TGS AP <tgs-ap@tgstrans.com>

Cc: NA Collections <na.collections@one-line.com>; Maricel Exiomo <maricel.exiomo@one-line.com>

Subject: Re: FW: FW: MIF_DET_IMMEDIATE PAYMENT NEEDED_T.G.S. TRANSPORTATION, INC. Week8

Hi All,

I hope this email finds you well. I want to follow up on accounts past due detention invoices. We haven't received the payment yet, so I wanted to ensure the SOA was received and reviewed. Would you please check to see if the accounts payable department has processed the payment? I look forward to receiving payment within a week.

I really appreciate your help!

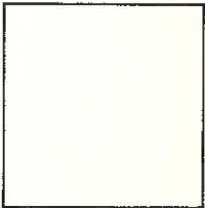
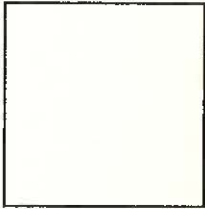
MOVING FORWARD ANY INQUIRIES LIKE :

TRUCKER'S DETENTION INQUIRIES SEND IT TO na.ofs.Truck.Det@one-line.com

OCEAN FREIGHT INQUIRIES SEND IT TO na.ofs.liner.ar@one-line.com

PAYMENT INQUIRIES SEND IT TO na.ofs.CashReceipts@one-line.com

"Please send remittance details to our Cash Receipt Team at na.ofs.cashreceipts@one-line.com"



□-----□

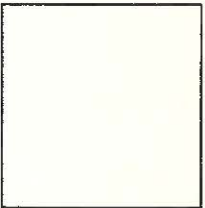
Suzette Virrey

NA F&A Detention Collection

na.ofs.truck@one-line.com

571-258-4072 ext. 56464

□-----□



Ocean Network Express (North America) Ltd.

www.us.one-line.com

Thank you,

Peter Schneider – Executive Vice President

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From: Brian Mayfield [<mailto:brian.mayfield@one-line.com>]

Sent: Wednesday, August 28, 2019 12:11 PM

To: Peter Schneider <pschneider@tgstrans.com>

Cc: Evan Pritchard <Evan_Pritchard@gap.com>; Pan Saurastri <pan.saurastri@one-line.com>; David Johnson <David_Johnson@gap.com>; Nelson Weisman <nelson.weisman@one-line.com>; Jeff Cox <jcox@tgstrans.com>; Tim Schneider <tschneider@tgstrans.com>; Diane Ruether <druether@tgstrans.com>; Janet Daniel <jdaniel@tgstrans.com>

Subject: Re: ***URGENT*** ONE line per diem with GAP-TGS

Thanks Peter.

Let us study this and get back to you.

Best Regards,

Brian Mayfield

Sr. Account Executive

Ocean Network Express (North America) Inc.

San Francisco Bay Area

Tel: 415-215-6707

brian.mayfield@one-line.com

www.one-line.com

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On Wed, Aug 28, 2019 at 9:52 AM Peter Schneider <pschneider@tgstrans.com> wrote:

Please see the attached emails.

Fastlane inventory email – TGS used spaces there and was terming spaces out in Feb-Mar19, when this email was sent it showed we had 2 containers and 1 chassis still in there...not the subject container.

KKTU7709583 email – this is from ONE equipment telling us to take empties to Fastlane.

Bottom line – TGS took the empty to Fastlane. Our driver checked it in under ONE and returning an empty; not under TGS, however, they are stating the opposite. How can the driver take an empty in, that container not show up in our inventory/yard check, but still be under us. I hope this makes sense.

We termed the container as instructed and should not be hit for any per diem.

Thank you,

Peter Schneider – Executive Vice President

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From: Peter Schneider

Sent: Wednesday, August 28, 2019 9:36 AM

To: 'Brian Mayfield' <brian.mayfield@one-line.com>

Cc: 'Evan Pritchard' <Evan_Pritchard@gap.com>; 'Pan Saurastri' <pan.saurastri@one-line.com>; 'David Johnson' <David_Johnson@gap.com>; 'Nelson Weisman' <nelson.weisman@one-line.com>

Subject: RE: ***URGENT*** ONE line per diem with GAP-TGS

Brian and all,

Please see the attached docs from the load. I will be sending a separate email with the emails from this load.

Thank you,

Peter Schneider – Executive Vice President

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From: Peter Schneider

Sent: Tuesday, August 27, 2019 2:02 PM

To: 'Brian Mayfield' <brian.mayfield@one-line.com>

Cc: Evan Pritchard <Evan_Pritchard@gap.com>; Pan Saurastri <pan.saurastri@one-line.com>; David Johnson <David_Johnson@gap.com>; Nelson Weisman <nelson.weisman@one-line.com>

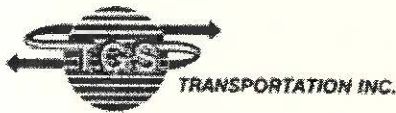
Subject: RE: ***URGENT*** ONE line per diem with GAP-TGS

I have all the documents from the load. We are now pulling up emails from ONE, YTI and Gap, as well as GPS data from our ELD.

Thank you,

Peter Schneider – Executive Vice President

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From: Brian Mayfield [<mailto:brian.mayfield@one-line.com>]

Sent: Tuesday, August 27, 2019 1:41 PM

To: Peter Schneider <pschneider@tgstrans.com>

Cc: Evan Pritchard <Evan_Pritchard@gap.com>; Pan Saurastri <pan.saurastri@one-line.com>; David Johnson <David_Johnson@gap.com>; Nelson Weisman <nelson.weisman@one-line.com>

Subject: Re: ***URGENT*** ONE line per diem with GAP-TGS

Peter,

Please send me whatever back up information that you have including interchange receipt.

Best Regards,

Brian Mayfield

Sr. Account Executive

Ocean Network Express (North America) Inc.

San Francisco Bay Area

Tel: 415-215-6707

brian.mayfield@one-line.com

www.one-line.com

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On Tue, Aug 27, 2019 at 11:57 AM Peter Schneider <pschneider@tgstrans.com> wrote:

Evan,

Thank you very much.

Hi Brian...hope all is well.

Brian and Pan, please see the short list of events on said container. As everyone knows, late fall, winter and early spring were a mess for returning empty containers. ONE was real tough for several weeks and we stored containers at our expense and Gaps for weeks at time. This was a "goof" as we used Fastlane as a yard for a short period. The gate clerk didn't check the container under ONE, instead under TGS. We never got a yard check from Fastlane with that container on it and it was just sitting there for roughly 6 months. To charge \$16,000 for that is just not right.

If you need back up documentation – interchanges, handtags, etc...let me know. Any and all help you can do to help make this go away would be grateful.

Here is the list of events.

Loaded from YTI to Gap Fresno	11/15/18 – 9:14 (arrive Gap 14:33)
Empty from Gap Fresno to YTI	12/6/18 – 9:00
Empty from YTI to Fastlane	12/6/18 – 10:00
Empty from Fastlane to YTI	6/19/19 – 13:33

Thank you,

Peter Schneider – Executive Vice President



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From: Evan Pritchard [mailto:Evan_Pritchard@gap.com]
Sent: Tuesday, August 27, 2019 11:47 AM
To: 'Brian Mayfield' <brian.mayfield@one-line.com>; Pan Saurastri <pan.saurastri@one-line.com>
Cc: Peter Schneider <pschneider@tgstrans.com>; David Johnson <David_Johnson@gap.com>
Subject: FW: ***URGENT*** ONE line per diem with GAP-TGS
Importance: High

Brian/Pan – Hoping you can offer some assistance on an issue involving a Gap container with TGS. Sounds like a container (TCLU1663710) was terminated at the Fastlane yard in LA at ONE's request but detention charges were applied regardless. I'm including Peter on copy if there's any supporting documentation that needs to be applied but would obviously appreciate any support to ensure the TGS folks are not shutout.

To recap - TGS was sent over a \$16,240 per diem invoice for one container (attached) that the team is refusing to pay as it was returned empty to an off-dock location at ONE's request. It happened to be the same location as one of TGS's yards in LA at the time (Fastlane). TGS was apparently instructed to terminate it there by ONE.

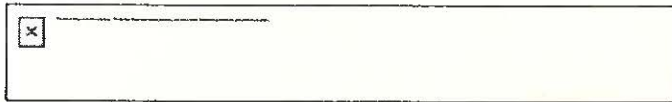
Let me know how I can support.

Thank you,

Evan Pritchard | Sr. Manager – International Transportation Operations

2 Folsom Street, San Francisco, CA 94105

office: 415-427-3095 | cell: 845-800-1143 | email: Evan_Pritchard@Gap.com



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